BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,** Defendant.	Case No. 4:26-cv-05953-ASK **PLAINTIFF'S INITIAL DISCLOSURES** (Fed. R. Civ. P. 26(a)(1)) CMC: September 15, 2026 Time: 1:30 p.m. via Zoom Judge: Hon. Ajay S. Krishnan

PLAINTIFF'S INITIAL DISCLOSURES

(Fed. R. Civ. P. 26(a)(1))

TO DEFENDANT AND HIS ATTORNEY OF RECORD:

Plaintiff Brendan Ngehsi Newanforbi, appearing in propria persona, serves these Initial Disclosures under Federal Rule of Civil Procedure 26(a)(1). They are dated September 8, 2026, the date set by the Court's June 17, 2026 Order Setting Initial Case Management Conference and ADR Deadlines (Dkt. 4). They are served on counsel; they are not filed with the Clerk except as the Court may later order. Plaintiff reserves the right to supplement under Rule 26(e).

The parties stipulated on September 3, 2026 to continue the initial case management

conference until after a ruling on Defendant's pending motion to dismiss and to vacate this disclosure deadline (Dkt. 22). No signed order appears on PACER as of the date of these disclosures. Plaintiff therefore makes them now. If the Court later enters the Dkt. 22 proposed order, Plaintiff will treat this service as having been made without prejudice to the reset schedule.

A. Individuals Likely to Have Discoverable Information

Fed. R. Civ. P. 26(a)(1)(A)(i). Addresses and telephone numbers are given as known. CHP personnel may be contacted through counsel of record for Defendant unless they agree otherwise.

1. Brendan Ngehsi Newanforbi (Plaintiff). 1455 Cat Tail Drive, Stockton, CA 95204; telephone (209) 801-4442; e-mail bnn.cdl@gmail.com. Subjects: the November 1, 2024 stop and arrest; the Penal Code section 851.6 detention certificate; Plaintiff's complaints to CHP and POST; the April 9, 2026 U-visa certification request; receipt of Lieutenant Paul's April 10, 2026 e-mail; receipt of Captain Serrato's April 20, 2026 denial; protected petitioning; and the injuries alleged in the First Amended Complaint.

2. Captain G. Serrato, Commander, CHP Dublin Area, in his individual and official capacities. CHP Dublin Area, 4999 Gleason Drive, Dublin, CA 94568; c/o Haiyang A. Li, Deputy Attorney General, 300 South Spring Street, Suite 1702, Los Angeles, CA 90013-1230; telephone (213) 269-6404; e-mail Haiyang.Li@doj.ca.gov. Subjects: the March 26, 2026 complaint-assignment letter; the April 20, 2026 denial; review of the April 9 packet; application of Penal Code section 679.10 and Attorney General Bulletin DLE-2024-05; knowledge of Plaintiff's complaints and related litigation; and any internal review or investigation of the November 1, 2024 incident.

3. Lieutenant Gary Paul, CHP Dublin Area, 4999 Gleason Drive, Dublin, CA 94568; telephone unknown; c/o counsel for Defendant. Subjects: the April 10, 2026 e-mail confirming

receipt of the certification request ("Your email has been received and your request is under review") and routing of that request.

4. Sergeant Eric Dutra, CHP Dublin Area, 4999 Gleason Drive, Dublin, CA 94568; telephone unknown; c/o counsel for Defendant. Subjects: the investigation assigned by Captain Serrato's March 26, 2026 letter, and any findings bearing on the certification request or the November 1, 2024 incident.

5. Officer Santiago Meza-Gonzalez, CHP #023295. California Highway Patrol, Modesto Area, 4030 Kiernan Avenue, Modesto, CA 95356; telephone unknown. Subjects: the November 1, 2024 stop, arrest, and Arrest-Investigation Report (CHP Case No. RJ68845), which were the subject of Plaintiff's certification request. He is a defendant in the related action *Nforbi v. Meza-Gonzalez et al.*, No. 4:26-cv-08271-ASK.

6. Officer Jose Melano, CHP #023054. California Highway Patrol, South Sacramento Area, 6 Massie Court, Sacramento, CA 95823; telephone unknown. Subjects: the same November 1, 2024 stop, arrest, and report. He is a defendant in No. 4:26-cv-08271-ASK.

7. Custodian of Records, CHP Dublin Area, 4999 Gleason Drive, Dublin, CA 94568; and **Custodian of Records, California Highway Patrol** (dashcam, CAD, and arrest-report systems statewide). Subjects: the original dashcam recording of the November 1, 2024 I-580 East Livermore encounter (approximately 00:54:36 to 01:57:10); Arrest-Investigation Report RJ68845; the November 5, 2024 Penal Code section 851.6 Detention Certificate; the April 9, 2026 certification packet as received; internal-affairs or complaint files; and e-mail concerning the request and the April 20 denial.

8. Custodian of Records, Commission on Peace Officer Standards and Training (POST), regarding Case No. PUBLIC-26-000371. Subjects: Plaintiff's complaint forwarded to CHP on

or about March 23, 2026, and POST's handling of that complaint.

B. Documents and Electronically Stored Information

Fed. R. Civ. P. 26(a)(1)(A)(ii). Plaintiff describes categories and location rather than attaching copies. Unless noted, copies in Plaintiff's possession are at 1455 Cat Tail Drive, Stockton, CA 95204, and in Plaintiff's e-mail account bnn.cdl@gmail.com. Originals of CHP and POST records are in those agencies' possession.

1. Pleadings, orders, and papers on the PACER docket of this action, including the First Amended Complaint (Dkt. 10), Notice of Errata (Dkt. 12), USM-285 return (Dkt. 15), Defendant's motion to dismiss (Dkt. 18), Plaintiff's opposition (Dkt. 20), Clerk's Notice (Dkt. 21), and the unsigned stipulation (Dkt. 22).

2. CHP dashcam video transcript of the November 1, 2024 I-580 East Livermore encounter (approximately 00:54:36 to 01:57:10), and the underlying recording (original with CHP).

3. CHP Arrest-Investigation Report, Case No. RJ68845.

4. Penal Code section 851.6 Detention Certificate issued by Dublin CHP on November 5, 2024.

5. Plaintiff's April 9, 2026 U-visa certification packet to CHP Dublin Area: completed Form I-918, Supplement B; legal memorandum identifying qualifying criminal activity under 8 U.S.C. § 1101(a)(15)(U)(iii); dashcam transcript with timestamped citations; and supporting exhibits (report, detention certificate, POST acknowledgment).

6. POST Case No. PUBLIC-26-000371 materials, including the complaint forwarded to CHP on or about March 23, 2026.

7. Captain Serrato's March 26, 2026 complaint-assignment letter assigning Sergeant Eric Dutra as investigator.

8. Lieutenant Gary Paul's April 10, 2026 e-mail confirming receipt.

9. Captain Serrato's April 20, 2026 denial letter.

10. California Attorney General Information Bulletin No. DLE-2024-05 (April 3, 2024).

11. Papers in the related federal action Nforbi v. Meza-Gonzalez et al., No. 4:26-cv-08271-ASK, and in Newanforbi v. California Highway Patrol et al., Alameda Superior Court No. 26CV191136, including Hon. Jenna M. Whitman's August 29, 2026 order (notice of entry August 31).

12. Correspondence with the Office of the Attorney General concerning this action, including service and case-management e-mails.

13. ESI: e-mails, PDFs, and drafts in Plaintiff's possession relating to the certification request, the denial, and this lawsuit.

C. Computation of Damages

Fed. R. Civ. P. 26(a)(1)(A)(iii). The First Amended Complaint does not plead a specific dollar figure. Plaintiff presently computes claimed damages as follows, subject to supplementation. These computations are for this action's April 20, 2026 certification denial. They do not import a wage figure pleaded in any related action concerning the November 1, 2024 arrest.

1. Compensatory / noneconomic. Deprivation of meaningful access to the U-visa process; ongoing immigration uncertainty; inability to obtain employment authorization and removal

protections that a lawful certification decision would have allowed Plaintiff to pursue; severe emotional distress and anxiety; and deprivation of the dignitary interest in having a state actor acknowledge documented criminal misconduct by subordinate officers. These harms began on April 20, 2026, and are continuing. They are not presently reducible to a precise dollar figure. Plaintiff will prove them according to the evidence at trial.

2. Compensatory / economic. Lost opportunity to obtain employment authorization through the U-visa process as a consequence of the denial. Plaintiff has not yet quantified a wage-loss or earnings figure attributable to this action and will supplement under Rule 26(e) if a figure is developed. Documents that may bear on that category include the April 9 packet, the April 20 denial, and any later certification decision.

3. Punitive damages against Defendant in his individual capacity, for the conduct alleged in the First Amended Complaint, including a claimed "thorough review" unsupported by the record and willful refusal to engage with evidence in CHP's possession. Amount according to proof; a jury determination. No insurance or indemnity document in Plaintiff's possession computes this category.

4. Prospective relief (non-monetary): vacatur of the April 20, 2026 denial and a remand for a new certification decision that applies the correct statutory standards, engages with the evidence, and is free of retaliatory motive. Plaintiff does not seek in this action an order compelling Defendant to sign Form I-918, Supplement B. See Dkt. 20.

5. Costs, pre-judgment and post-judgment interest, and attorney's fees under 42 U.S.C. § 1988(b) and California Code of Civil Procedure section 1021.5 as prayed. Plaintiff is presently appearing in propria persona. Fee amounts, if any, will be supplemented if counsel is retained.

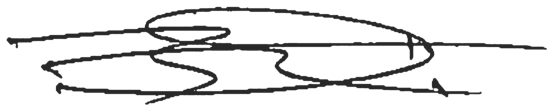
D. Insurance Agreements

Fed. R. Civ. P. 26(a)(1)(A)(iv). Plaintiff is not aware of any insurance agreement under which an insurance business may be liable to satisfy all or part of a possible judgment against Plaintiff, or to indemnify or reimburse for payments made to satisfy such a judgment. Any indemnity, self-insurance, or coverage applicable to Defendant is uniquely within Defendant's knowledge and is Defendant's disclosure obligation.

Plaintiff reserves the right to supplement these disclosures as investigation and discovery continue, including after a ruling on Defendant's pending motion to dismiss.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per